

school property, and that negligence resulted in the off-campus harm to [the student].” (Id. at p. 775.) Citing *Mosley*, Taylor also rejected the plaintiff’s “expansive approach that would expose a school district to liability for any employee’s off-campus tort that could somehow be ‘traced back to negligent hiring and supervision,’” because such an interpretation would “run afoul of section 44808’s express purpose of limiting school district liability for harm that occurs to students when they are not on school property or engaged in school-sponsored or school-supervised activities.” (Id. at p. 776.)

Plaintiff’s reliance on *C.A. v. William S. Hart Union High Sch. Dist.* (2012) 53 Cal. 4th 861 (and its progeny) is misplaced, because they did not implicate the immunity under section 44808. In fact, Taylor expressly pointed out that the “negligent hiring liability” described in *C.A.* did not address the immunity under section 44808; and, that *C.A.* had “clearly stated its analysis was premised on the assumption that ‘no immunity provision applies.’” (Taylor, *supra*, 112 Cal.App.5th at p. 777.)

Likewise, Plaintiff’s reliance on *Hoyem v. Manhattan Beach City Sch. Dist.* (1978) 22 Cal.3d 508 and *Perna v. Conejo Valley Unified School Dist.* (1983) 143 Cal.App.3d 292, is misplaced. In *Hoyem*, the student suffered “an off-campus injury that occurred at a time when the school was supposed to be supervising the student.” Immunity under section 44808 does not apply, because it “withdraws immunity only when the student is or should be under the school’s direct supervision.” (*Vallejo City Unified School Dist. v. Superior Court* (2025) 118 Cal.App.5th 139, 151 [distinguishing *Hoyem*].) In *Perna*, the teacher was allegedly negligent in her dismissal, because she “kept the children after school to grade papers knowing that crossing guards would not be available and that

		the children would have to cross a busy street.” (Guerrero v. South Bay Union School Dist. (2003) 114 Cal.App.4th 264, 270 [distinguishing Perna].) Unlike in Hoyem or Perna, here, Plaintiff has not proffered any evidence that he should have been under Defendant SAUSD’s supervision when the sexual abuse occurred; or, that the alleged negligence had anything to do with being at school during hours when he should or should not have been there. For the foregoing reasons, the Court finds Defendant SAUSD is entitled to summary judgment on Plaintiff’s complaint. The alternative motion for summary adjudication is moot. Defendant SAUSD shall give notice of the ruling.
58	<i>Pinedo vs. CA KITCHEN FLOORS & BATHS, INC.</i>	Motion is off calendar. Case Management Conference remains on calendar.
59	<i>R & R Life is Amazing LLC vs. Daher</i>	Defendant Sibannac LLC’s motion for relief from the default entered against it on 3/11/25 is GRANTED. Defendant is to file his proposed answer no later than July 17, 2026. First, the court finds that the Sorrentino Declaration meets the requirements of an affidavit of fault such that relief is mandatory. Plaintiffs are awarded fees and costs of \$1,350. Alternatively, the court exercises its inherent equitable power to grant relief. Plaintiffs’ evidentiary objections are overruled.